

## Opinion of the Court

necessarily inconsistent with the house being unoccupied. The owner could have paid the utilities and kept the blinds while he looked for a new tenant, and the partygoers could have brought the food and toiletries. Although one woman told the officers that Peaches had recently moved in, the officers had reason to doubt that was true. There were no boxes or other moving supplies in the house; nor were there other possessions, such as clothes in the closet, suggesting someone lived there.

In addition to the condition of the house, consider the partygoers' conduct. The party was still going strong when the officers arrived after 1 a.m., with music so loud that it could be heard from outside. Upon entering the house, multiple officers smelled marijuana.<sup>5</sup> The partygoers left beer bottles and cups of liquor on the floor, and they left the floor so dirty that one of them refused to sit on it. The living room had been converted into a makeshift strip club. Strippers in bras and thongs, with cash stuffed in their garter belts, were giving lap dances. Upstairs, the officers found a group of men with a single, naked woman on a bare mattress—the only bed in the house—along with multiple open condom wrappers and a used condom.

Taken together, the condition of the house and the conduct of the partygoers allowed the officers to make several “‘common-sense conclusions about human behavior.’” *Gates, supra*, at 231 (quoting *United States v. Cortez*, 449 U. S. 411, 418 (1981)). Most homeowners do not live in near-

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<sup>5</sup>The panel majority dismissed this fact because the officers “did not see any evidence of drugs” and did “not attempt to justify [the] arrests” based on drug use. 765 F. 3d, at 23, n. 5. But a reasonable officer could infer, based on the smell, that marijuana had been used in the house. See *Johnson v. United States*, 333 U. S. 10, 13 (1948) (noting that “the odor” of narcotics can “be evidence of most persuasive character”). And the officers could consider the drug use inside the house as evidence that the partygoers knew their presence was unwelcome.